

STATE OF NEW YORK

3043--A

2025-2026 Regular Sessions

IN SENATE

January 23, 2025

Introduced by Sen. HOYLMAN-SIGAL -- read twice and ordered printed, and when printed to be committed to the Committee on Housing, Construction and Community Development -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the real property actions and proceedings law, in relation to compliance by New York city marshals with filing requirement regarding service of a notice of eviction

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Section 749-a of the real property actions and proceedings
2 law, as added by chapter 129 of the laws of 2024, is amended to read as
3 follows:
4 § 749-a. New York city marshals. A marshal of the city of New York
5 shall provide notice of [~~execution of a warrant of~~] eviction [~~by phys-~~
6 ~~ical posting of the notice~~] in the manner prescribed in this article for
7 the service of a notice of petition and by an electronic filing within
8 one business day of service of the notice of eviction. For purposes of
9 this section, "electronic filing" shall mean an electronic filing as
10 described in section twenty-one hundred three-a of the New York city
11 civil court act and "business day" shall mean any day other than Satur-
12 day or Sunday.
13 § 2. This act shall take effect immediately; provided, however, that
14 the amendments to section 749-a of the real property actions and
15 proceedings law made by section one of this act shall be subject to the
16 repeal of such section and shall expire and be deemed repealed there-
17 with.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [~~-~~] is old law to be omitted.

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